

BNS 2023

Bharatiya Nyaya Sanhita, 2023

Bharatiya Nyaya Sanhita (BNS), 2023

User Query :

A person has been sending me WhatsApp messages demanding ₹2 lakh and threatening to physically harm me and damage my business if I do not pay. The person has also sent photographs of my home and family members to show that they know where I live. I have saved the messages, screenshots and call recordings. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 12/Bharatiya Nyaya Sanhita (BNS), 2023

Prepared by :

NyaySahayak

Date :

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NyaySahayak

AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 308

— Extortion

The sender demands ₹2 lakh while threatening injury; if payment has not been made, the attempt/putting-in-fear parts of **section 308** are particularly relevant.

Section 351

— Criminal intimidation

Threats of physical harm and damage to business/property are directly within the intimidation concept.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The central offences are extortion and criminal intimidation. The saved home/family photographs strengthen proof of the threat but do not create a separate generic 'surveillance' offence on the stated facts.

✓ STRENGTHS & RIGHTS

1 There is an express demand for money linked to threats of harm.

✗ RISKS & OBLIGATIONS

1 Use the enacted BNS provisions rather than obsolete IPC numbering or invented BNS sections.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve all messages, call recordings, payment demands, numbers/account identifiers and originals.

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